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 Updates

EPIC Files Amicus Brief Arguing City's Use of Flock ALPRs Violated Fourth Amendment

April 20, 2026



EPIC filed an [amicus brief](#) to the Fourth Circuit on April 20 in support of [plaintiff-appellants](#) in [Schmidt v. City of Norfolk](#), who allege that the Virginia city of Norfolk's use of Flock's Automated License Plate Reader (ALPR) system creates a warrantless mass surveillance program and constitutes an unreasonable search in violation of the Fourth Amendment. Plaintiffs appealed after the court dismissed the case in January.

The brief details how ALPR systems expose the "privacies of life" of people going about their daily lives to law enforcement by amassing troves of sensitive information—without a warrant—and combining it with other data so police can infer the identities and continuously monitor the habits of everyday people.

It also argues that these systems perpetuate discriminatory and potentially unconstitutional predictive policing practices, as they were built on unvetted and inherently biased data that overrepresent poor and minority populations and use that information to manufacture suspicion.

"Absent strict safeguards, ALPRs revive the arbitrary powers of the reviled general warrant and undercut democracy," the brief notes.

The Fourth Circuit should reverse the district court's judgement and hold that Norfolk's operation of a warrantless dragnet mass surveillance program is unconstitutional, EPIC argues.



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